

# SENATE . . . . . No. 2780

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)

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SENATE, December 8, 2025.

The committee on Telecommunications, Utilities and Energy to whom was referred the petition (accompanied by bill, Senate, No. 2269) of James B. Eldridge, Jason M. Lewis and Sal N. DiDomenico for legislation to implement the Smart Residential Solar Permitting Platform to issue permits instantly and issue permit revisions instantly for residential solar photovoltaic systems, report the accompanying bill (Senate, No. 2780).

For the committee,  
Michael J. Barrett

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act facilitating distributed energy resources in the commonwealth.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 25A of the General Laws is hereby amended by striking out  
2   section 14 in its entirety and replacing it with the following section:-

3           Section 14. (a) A state agency, building authority, local governmental body or the  
4   judiciary may contract for energy conservation, building decarbonization and energy efficiency  
5   projects that have a total project cost of \$300,000 or less, directly and without further  
6   solicitation, with electric and gas utilities, their subcontractors, contractors certified by the  
7   division of capital asset management and maintenance, and other providers of energy  
8   conservation, building decarbonization and energy efficiency services authorized under sections  
9   19 and 21 of chapter 25 and section 11G. For the purposes of this section, "energy conservation,  
10   building decarbonization and energy efficiency projects" shall mean projects to promote energy  
11   conservation, building decarbonization and energy efficiency, including, but not limited to: (i)  
12   energy conserving modification to windows and doors; (ii) caulking and weatherstripping; (iii)  
13   insulation; (iv) automatic energy control systems; (v) hot water systems; (vi) equipment required  
14   to operate variable steam, hydraulic and ventilating systems; (vii) plant and distribution system

modifications; (viii) devices for modifying fuel openings and thermal conduits; (ix) electrical or mechanical motor or furnace ignition systems; (x) utility plant system conversions; (xi) replacement or modification of lighting fixtures; (xii) energy recovery systems; (xiii) on-site electrical generation equipment using new renewable energy generating sources as defined in section 11F; (xiv) decarbonization activities; and (xv) cogeneration systems.

(b) For purposes of this section, "total project cost" shall mean all construction costs of an energy conservation project applicable to a discrete building or property, whether borne by the utility, agency, authority, body or the judiciary including, without limitation, the costs associated with equipment purchase and installation of such equipment. Ancillary services provided at no cost by utilities, such as auditing and design, shall not be considered part of project cost.

(c) A state agency, building authority, local governmental body or the judiciary may pay for such energy conservation, building decarbonization and energy efficiency projects through additions to their monthly utility bills.

(d) Sections 44A to 44M, inclusive, of chapter 149 and section 39M of chapter 30 shall not apply to contracts entered into under this section.

(e) Notwithstanding subsection (a), the division of capital asset management and maintenance may contract for energy conservation, building decarbonization and energy efficiency projects that have a total project cost of not more than \$500,000, directly and without further solicitation, with electric and gas utilities, their subcontractors, contractors certified by said division, and other providers of such energy conservation, building decarbonization and energy efficiency projects authorized under section 11G and sections 19 and 21 of chapter 25.

SECTION 2. Chapter 25A of the General Laws is hereby amended by inserting at the end thereof the following new section:

Section 25(a): As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Commissioner”, the commissioner of the Department of Energy Resources.

"Commonwealth smart solar permitting platform", software, or a combination of software, that, at a minimum, and consistent with chapter 143 of the General Laws except as otherwise provided in this section; chapter 40C of the General Laws, as amended by sections 38 and 39 of chapter 239 of the Acts of 2024; section 3 of chapter 470 of the Acts of 1973, as amended by sections 92 and 93 of chapter 239 of the Acts of 2024, and the other laws of the commonwealth, allows contractors and other qualified parties to submit, via electronic means and without the need for follow-up manual review, applications to install or construct a residential solar energy system; automatically performs robust code compliance checks and reviews an application to install or construct such a system; generates an approval via electronic means, without the need for follow-up manual review, to a code-compliant application and issues a permit or permit revision; accepts online payments of fees or charges if fees or charges are levied; and issues a permit or permit revision upon receipt of payment.

"Department", the Department of Energy Resources.

“Form and format”, the arrangement, organization, configuration, structure, or style of, or methods of delivery of, required information or the substantive equivalent of required information, except that “form and format” shall not mean the altering of the substance of information or the addition or omission of information.

(b) The department shall procure, implement, administer and make available a commonwealth smart solar permitting platform that, at a minimum:

(i) publishes, on a publicly accessible internet website, all permitting documentation and forms required to construct or install a residential solar energy system in the commonwealth;

(ii) provides customer support and training to assist users to navigate the commonwealth solar permitting platform;

(iii) allows contractors and other qualified parties to submit, via electronic means 24 hours a day, seven days a week except when the permitting platform is down for an upgrade or maintenance, applications to install or construct a residential solar energy system within the commonwealth;

(iv) automatically performs robust code compliance checks and reviews applications to install or construct residential solar energy systems up to the maximum capacity allowed by a 200-amp main service disconnect providing power to a detached one- or two-family dwelling, including but not limited to a determination of whether an application aligns with the requirements of chapter 40C of the General Laws, as amended by sections 38 and 39 of chapter 239 of the Acts of 2024; section 3 of chapter 470 of the Acts of 1973, as amended by sections 92 and 93 of chapter 239 of the Acts of 2024; chapter 143 of the General Laws other than the second paragraph of section 98 of chapter 143, which shall not apply to this section; and other laws of the commonwealth;

(v) generates an approval via electronic means, without the need for follow-up manual review, to a code-compliant application and issues a permit or permit revision;

(vi) produces construction documents to be used in the inspection of the residential solar energy system and for recordkeeping purposes;

(vii) generates an inspection checklist to streamline, and improve the quality and thoroughness of, the final inspection;

(viii) is capable of processing permit applications for solar energy systems and associated equipment including, but not necessarily limited to, photovoltaic panels, energy storage systems, main electrical panel upgrades, and main breaker derates for detached one- and two-family dwellings; and

(ix) is capable of processing, at a minimum, a substantial majority of permit applications for such systems in a substantial majority of jurisdictions in the commonwealth.

(c) The department shall fully implement a commonwealth smart solar permitting platform and make it available within 12 months of the effective date of this section.

(d) The department shall provide access to, and facilitate use of, the commonwealth smart solar permitting platform to municipalities at no charge. For use of the commonwealth platform, the department may charge a reasonable fee or charge to contractors, providers of plan reviews and inspection services, and other professionals engaged in the installation or construction of residential solar energy systems.

(e) Within 18 months of the effective date of this section, a municipality shall allow for the submission of applications to construct a residential solar energy system either through the commonwealth smart solar permitting platform or through an alternative automated solar permitting platform that generates an approval via electronic means, without the need for follow-

up manual review, to a code-compliant application, issues a permit or permit revision, and otherwise satisfies the requirements set forth in paragraphs (b) and (d) of this section in a manner substantially equivalent to, or better than, that of the commonwealth platform; provided, that such an alternative platform shall not require a user to submit documentation other than what is required by the commonwealth platform,

(f) A municipality proposing less than full compliance with subsection (e) of this section shall, within 18 months of the effective date of this section, provide the department a detailed analysis demonstrating why adopting neither the commonwealth platform nor an alternative platform is feasible given the conditions and timeline required in this section and shall propose a secondary alternative method that, within 24 months of the effective date of this section, allows contractors and other qualified parties to submit, via electronic means, applications to install or construct a residential solar energy system; automatically performs robust code compliance checks and reviews an application to install or construct such a system; generates an approval via electronic means, without the need for follow-up manual review, to a code-compliant application and issues a permit or permit revision; accepts online payments of fees or charges if fees or charges are levied; and issues a permit or permit revision upon receipt of payment.

(g) A municipality that allows for the submission of residential solar energy system applications through the commonwealth smart solar permitting platform or through an alternative or secondary alternative platform may charge a reasonable fee or charge to contractors, providers of plan reviews and inspection services, and other professionals engaged in the installation or construction of residential solar energy systems.

(h) A municipality that implements an alternative or secondary alternative automated solar permitting platform shall submit a compliance report to the department within 60 days of the municipality's implementation of the alternative or secondary alternative platform. The department shall establish guidelines for preparation and submission of the compliance report, which report shall include, at a minimum, (i) the date the alternative or secondary alternative system was made available to residential end users, to contractors engaged in the installation of residential solar energy systems, and to providers of plan reviews and inspection services; (ii) the software used by the alternative or secondary alternative system; (iii) clear and convincing documentation that the alternative or secondary alternative performs the functions set forth in subsections (b) and (d) of this section in a manner and on a schedule substantially equivalent to, or better than, that of the commonwealth platform.

(i) If the department determines that a compliance report submitted pursuant to paragraph (h) of this section is insufficient to verify whether the platform satisfies the requirements set forth in paragraphs (b) and (d) of this section in a manner substantially equivalent to, or better than, that of the commonwealth platform, the municipality shall grant the department access to the alternative or secondary alternative platform. The department may take further action to determine whether the platform satisfies the requirements set forth in paragraphs (b) and (d) of this section in a manner substantially equivalent to, or better than, that of the commonwealth platform; may, consistent with state law, make its findings publicly available; and may, in the event that it determines that the platform is not satisfactory, take action to encourage and secure compliance with paragraphs (b), (d) and (h) of this section and authorize the appropriate parties in the municipality's jurisdiction to utilize the commonwealth smart solar permitting platform.



(j) A municipality that implements an alternative or secondary alternative automated solar permitting platform pursuant to this section shall, commencing with April 1, 2028, submit an annual report to the department. The department may establish guidelines for the annual reports required under this paragraph, which report shall include, at a minimum: (i) the number of permits approved by the municipality for residential solar energy systems through the alternative or secondary alternative platform and the relevant characteristics of those systems; (ii) the number of permits approved by the municipality for such systems through means other than the alternative or secondary alternative platform and the relevant characteristics of those systems; (iii) documentation demonstrating that the alternative or secondary alternative platform continues to satisfy the requirements set forth in paragraphs (b), (c) and (d) of this section in a manner substantially equivalent to, or better than, that of the commonwealth platform.

(k) If the department determines that the annual report submitted pursuant to paragraph (k) of this section is insufficient to verify that the alternative or secondary alternative automated solar permitting platform meets the requirements set forth in paragraphs (b) and (d) of this section in a manner substantially equivalent to, or better than, that of the commonwealth platform, the municipality shall provide the department, at the department's request, access to the platform. The department may take further action to determine whether the platform satisfies the requirements set forth in paragraphs (b) and (d) of this section in a manner substantially equivalent to, or better than, that of the commonwealth platform; may, consistent with state law, make its findings publicly available; and may, in the event that it determines that the platform is not satisfactory, take action to encourage and secure compliance with paragraphs (b), (d) and (j) of this section and authorize the appropriate parties in the municipality's jurisdiction to utilize the commonwealth smart solar permitting platform.

(l) The department and municipalities shall authorize electronic signatures, stamps, seals, and other certifications and documents as appropriate in order to enable the commonwealth smart solar permitting platform or an alternative or secondary alternative automated solar permitting platform to accept the permit application and issue a permit.

(m) To defray the cost of procuring, implementing, administering and making available the commonwealth smart solar permitting platform, the department may adopt, amend, and repeal rules and regulations providing for the charging of, and setting the amounts of, solar permit fees to be collected by the Department, municipality, or third party.

(n) To satisfy the requirements of this section, the department may, at its discretion, procure goods and services by means of an advertised competitive bidding process that utilizes a request for proposals or request for qualifications.

(o) The commissioner shall provide training opportunities at no charge on the use of the commonwealth smart solar permitting platform to contractors, providers of plan reviews and inspection services, and other professionals engaged in the installation or construction of residential solar energy systems.

(p) The commissioner may, in accordance with chapter 30A of the General Laws, the State Administrative Procedure Act, adopt rules and regulations governing the form and format of applications for permits, approval documents, specifications and other information exchanged through the commonwealth smart solar permitting platform or any alternative or secondary alternative platform.

(q) Notwithstanding any law, rule or regulation to the contrary, the commissioner shall have the authority to waive requirements related to signatures, stamps, seals, certifications, or

188 notarizations, whether imposed by statute or by state or local regulation and whether imposed by  
189 the department or another department or agency, in order to enable the commonwealth smart  
190 solar permitting platform or any alternative or secondary alternative platform to accept permit  
191 applications and issue permits.

192 (r) A person exchanging information through either the commonwealth smart solar  
193 permitting platform or an alternative or secondary alternative automated solar permitting  
194 platform in a form and format acceptable to the department shall not be subject to a licensing  
195 sanction, civil penalty, fine, permit disapproval, revocation, or other sanction for failure to  
196 comply with a form or format requirement imposed otherwise by statute, ordinance, or rule that  
197 requires submission of the information in physical form, including but not limited to any  
198 requirement that the information be in a particular form or of a particular size, be submitted with  
199 multiple copies, be physically attached to another document, be an original document, or be  
200 signed, stamped, sealed, certified, or notarized.

201 (s) Neither a public entity nor a public employee shall be held liable under for injury  
202 caused by release of a permit through the commonwealth smart solar permitting platform or any  
203 alternative or secondary alternative platform.

204 SECTION 3. Section 6 of chapter 62 of the General Laws, as appearing in the 2022  
205 Official Edition, is hereby amended by striking out subsection (d) and inserting in place thereof  
206 the following subsection:-

207 (d) any owner or tenant of residential property located in the commonwealth who is not a  
208 dependent of another taxpayer and who occupies said property as his principal residence, shall be  
209 allowed a credit equal to 15 per cent of the net expenditure for a renewable energy source

property or \$2,500, whichever is lesser; provided, however, that in the case of a newly constructed residence the credit shall be available to the original owner/occupant. Any taxpayer entitled to this credit for any taxable year, the amount of which exceeds his total tax due for the then current taxable year, may carry over the excess amount, as reduced from year to year, and apply it to his tax liability for any one or more of the next succeeding three taxable years; provided, however, that in no taxable year may the amount of the credit allowed exceed the total tax due of the taxpayer for the relevant taxable year. For taxable years beginning on or after January first, two thousand twenty-seven, if the amount of the credit allowable under this subsection shall exceed the taxpayer's tax liability for such year, and the taxpayer meets the definition of low to moderate income, as defined in section 38d of chapter 121b in the general laws, or resides in an environmental justice population, as defined in section 62 of chapter 30 of the general laws, the excess shall be treated as an overpayment of tax to be credited or refunded, provided, however, that no interest shall be paid thereon. Joint owners of a residential property shall share any credit available to the property under this subsection in the same proportion as their ownership interest.

As used in this section, the following words shall have the following meanings:

"Renewable energy source property", property, including materials and component parts thereof, separately purchased and assembled by such residential property owner;

(A) which, when installed in connection with a dwelling, transmits or uses: (1) solar energy or any other form of renewable energy which the commissioner may specify by regulation, for the purpose of heating or cooling such dwelling or providing hot water for use

within such dwelling, or which produces electricity for such purposes, or (2) wind energy for nonbusiness residential purposes;

(B) the original use of which begins with the taxpayer;

(C) which can reasonably be expected to remain in operation for at least five years; and

(D) which meets performance and quality standards, if any, that have been prescribed by the commissioner by regulation; and are in effect at the time of the acquisition of the property.

"Net expenditure", the total of the purchase price for any renewable energy source property, plus installation cost, less any credits received pursuant to the Internal Revenue Code and less grants or rebates received from the United States Department of Housing and Urban Development.

SECTION 4. Subsection (f) of section 139 of chapter 164 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the words "The maximum amount of generating capacity eligible for net metering by a municipality or other governmental entity shall be 10 megawatts."

SECTION 5. Subsection (i) of section 139 of chapter 164 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the words "that are not net metering facilities of a municipality or other governmental entity under subsection (f)" both times they appear.

SECTION 6. Subsection (l) of section 139 of chapter 164 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in numbered item (ii),

251 after the words “chapter 40B,” the following words:- “or where the single parcel contains multi-  
252 family housing in a zoning district that is compliant with section 3A of Chapter 40A”.